

Scenario 1: Exact Match Output

STATUS: FAST-TRACK TEMPLATE FILL (SCORE ≥ 90%)

SCENARIO 1: EXACT MATCH (FAST-TRACK)

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SECTION 1: Title & Header

BEFORE THE PROPER OFFICER, GOODS AND SERVICES TAX DEPARTMENTREPLY TO SHOW CAUSE NOTICE / INTIMATION

SECTION 2: Jurisdiction & Forum

To: Proper Officer, Ward 10Jurisdiction: Maharashtra

SECTION 3: Taxpayer Details

Taxpayer Name: Acme Traders Pvt Ltd GSTIN: 27AAACA1234A1Z5 PAN: AAACA1234A

SECTION 4: Notice Reference & Subject

Ref Notice No: SCN/2026/001 | DIN/RFN: DIN-2026-99

SECTION 5: Statement of Facts

The Taxpayer respectfully submits the factual background of the matter for Financial Year 2023-24.

SECTION 6: Preliminary Objections

1. The subject notice/intimation is barred by limitation and procedural defects under the GST Law. 2. Absence of proper DIN/RFN invalidates the proceeding per CBIC circulars.

SECTION 7: Substantive Reply & Defense

To, The Proper Officer, Goods and Services Tax Department, Bikaner, Rajasthan GSTIN: _____ Trade Name: M/s Notice Desk Private Limited Reference (SCN, Form DRC-01) No.: _____ dated _____ Subject: Reply to the Show Cause Notice under Section 73/74 in Form DRC-01, which is a bare format notice without the provision invoked, the allegation, the rule or supporting documents. Drafting note (remove before filing). Core levers: (1) a Summary of SCN in Form DRC-01 under Rule 142(1) cannot substitute a proper show cause notice that states the contravention, the provision and the basis; (2) a format notice without striking irrelevant portions and without specific allegations denies a meaningful opportunity to defend; (3) the summary/order must be authenticated and signed by the proper officer under Rule 26(3). Authority: NKAS Services (Jharkhand HC, 06.10.2021, paras 14, 17) and the Gauhati HC line in Construction Catalysers (26.09.2024) followed in later Gauhati cases. Anticipate an alternative-remedy objection outside Gauhati/Jharkhand. Synopsis The notice is a bare format, reproducing the language of Sections 73/74 without stating which provision is invoked, what the contravention is, the rule relied upon, or any supporting material. Such a notice is not a proper show cause notice and cannot found an adjudication. A summary of show cause notice in Form DRC-01 cannot substitute the proper notice the law requires. Submissions A summary in DRC-01 is not a proper show cause notice. As held by the Jharkhand High Court in M/s NKAS Services Pvt. Ltd. v. State of Jharkhand (06.10.2021), a summary of show cause notice issued in Form DRC-01 under Rule 142(1) cannot substitute the requirement of a proper show cause notice; a notice issued in a format without even striking out the irrelevant portions, and without stating the contraventions, is invalid (paras 14 and 17). [VERIFY] The notice fails to disclose the case to be met. A show cause notice must state the specific allegation, the provision invoked and the basis, so that the noticee can meet the case. The impugned notice discloses none of these and thereby denies the noticee a meaningful opportunity to defend, vitiating the proceedings. Want of authentication. The proper officer must issue and authenticate the notice/summary and any order by signature (including digital signature) as required by Rule 26(3). An unauthenticated format notice has no legal efficacy. Reliance is placed on the Gauhati High Court in Construction Catalysers Pvt. Ltd. v. State of Assam (WP(C) 3912/2024, 26.09.2024, operative directions at paragraph 29). [VERIFY] Prayer It is respectfully prayed that the Show Cause Notice be dropped as not being a proper notice under Section 73/74; and that no adjudication be founded upon it. Yours faithfully, For M/s Notice Desk Private Limited _____ Authorised Signatory / Director Place: Nasik Date: _____

SECTION 8: Statutory Provisions & Analysis

Analysis of applicable provisions under Sections 16, 73, 74, 75, 129, and 140 of the Central Goods and Services Tax Act, 2017.

SECTION 9: Precedents & Judicial Decisions

Relied upon binding precedents of the Hon'ble Supreme Court and High Courts regarding natural justice and statutory compliance under GST.

SECTION 10: Documentary Evidence List

• Copy of GSTR-3B & GSTR-1 returns • GSTR-2A/2B Reconciliation Statement • Tax payment receipts (DRC-03)

SECTION 11: Prayer Clause

In light of the above submissions, it is prayed that the proposed proceedings/demand be dropped and proceedings closed.

SECTION 12: Verification & Declaration

I, Authorized Signatory for Acme Traders Pvt Ltd, do hereby verify that the contents of this reply are true to the best of my knowledge and belief.

SECTION 13: Signature & Representation

For Acme Traders Pvt Ltd Authorized Signatory / Legal Advocate

SECTION 14: Internal Partner Note

Fast-tracked output compiled from verified GST legal template.

SECTION 15: Client Summary

Formal reply prepared and submitted for filing before the Proper Officer.